

ORDER SHEET
IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR.
JUDICIAL DEPARTMENT

Sajjad Ali. Vs. The State and another.

15.01.2026. Malik Saif-ur-Rehman Kulyar, Advocate for the petitioner.
Ch. Tahir Rasool, Advocate for respondent No.2.
Jam Waheed Ahmed Bobra, Deputy District Public Prosecutor.

2. Brief facts of the case leading upto the filing of the instant petition are that the petitioner was named as an accused in case F.I.R. No.04 of 2025 registered at the Police Station Saddar Duniyapur, District Lodhran in respect of an offence under section 302 P.P.C. and after the investigation of the case, report under section 173 Cr.P.C. was submitted before the learned Magistrate concerned on 13.02.2025, who transmitted the same to the learned Sessions Judge, Lodhran and the learned Sessions Judge, Lodhran, then sent the case for trial to the learned Additional Sessions Judge, Duniyapur. During the course of the proceedings, charge against the petitioner was framed on 07.03.2025, who denied the same and claimed trial, however, subsequently during the course of trial, an application was submitted on behalf of the petitioner seeking his examination with regard to his mental health and upon the said

application, the learned Additional Sessions Judge, vide order dated 21.05.2025, directed that the petitioner be examined by a Medical Board to be constituted by the Medical Superintendent, B.V. Hospital, Bahawalpur with regard to the mental health of the petitioner and subsequently, the petitioner was examined by the Medical Board and was declared to be a patient of Schizophrenia, whereafter the learned Additional Sessions Judge summoned the head of the Medical Board, who had examined the petitioner, and recorded his statement on 25.10.2025 and directed that a further report regarding the health condition of the petitioner be produced before the court, however, said further report was never submitted and on 06.12.2025, the impugned order was passed.

3. Learned counsel for the petitioner *inter-alia*, contended that the order dated 06.12.2025 passed by the learned Additional Sessions Judge was liable to be set-aside being against the facts and the law as it violated the provisions of Section 465 and 467 of the Cr.P.C.

4. Learned counsel appearing on behalf of respondent No.2 as well as learned Deputy District Public Prosecutor have submitted that as the learned Additional Sessions Judge had passed the impugned order dated 06.12.2025 under the provision of Section 468 Cr.P.C. and as the said provision did allow the learned Additional Sessions Judge to pass the said order, therefore, the same was not open to any interference and was legal in all manners.

5. I have heard the learned counsel for the petitioner, learned counsel for respondent No.2, learned Deputy District Public Prosecutor and perused the record with their able assistance.

6. Perusal of the record reveals that the petitioner was named as an accused in case F.I.R. No.04 of 2025 registered at the Police Station Saddar Dunyapur, District Lodhran in respect of an offence under section 302 P.P.C. and after the

investigation of the case, report under section 173 Cr.P.C. was submitted before the learned Magistrate concerned on 13.02.2025, who transmitted the same to the learned Sessions Judge, Lodhran and the learned Sessions Judge, Lodhran, then sent the case for trial to the learned Additional Sessions Judge, Dunyapur. During the course of the proceedings, charge against the petitioner was framed on 07.03.2025, who denied the same and claimed trial, however, subsequently during the course of trial, an application was submitted on behalf of the petitioner seeking his examination with regard to his mental health and upon the said application, the learned Additional Sessions Judge, vide order dated 21.05.2025, directed that the petitioner be examined by a Medical Board to be constituted by the Medical Superintendent, B.V. Hospital, Bahawalpur with regard to the mental health of the petitioner and subsequently, the petitioner was examined by the Medical Board and was declared to be a patient of Schizophrenia, whereafter the learned Additional Sessions Judge summoned the head of the Medical Board, who had examined the petitioner, and recorded his statement on 25.10.2025 and directed that a further report regarding the health condition of the petitioner be produced before the court, however, said further report was never submitted and on 06.12.2025, the impugned order was passed. As mentioned above, it was on 21.04.2025 when the application was filed on behalf of the petitioner that his mental condition be determined and it was on 21.05.2025 that the learned Additional Sessions Judge directed the Medical Superintendent, B.V. Hospital, Bahawalpur, to get the petitioner examined through a Medical Board, so as to determine his mental health condition and the said report was also submitted. It is also a fact that the learned Additional Sessions Judge vide order dated 25.10.2025 had observed that according to the statement of the Head of the Medical Board, who had examined the petitioner, *he was found to be a patient of Schizophrenia and needed*

medical treatment. The learned Additional Sessions Judge never declared that the petitioner was of unsound mind and consequently unable to make his defence rather simply recorded that another report be submitted with regard to the mental health of the petitioner on the next date of hearing. In this manner, when even vide order dated 25.10.2025, the learned Additional Sessions Judge had not declared that the petitioner was of unsound mind and consequently incapable of making his defence, therefore, provisions of Section 467 Cr.P.C. were not even applicable in this case.

7. Now with regard to the part of the order dated 06.12.2025, according to which the learned Additional Sessions Judge himself examined the petitioner and observed that he was capable of making his defence during the trial, it is observed that though the provisions of Section 465 and 468 Cr.P.C., both allow the learned Additional Sessions Judge to make a *prima-facie* observation that the accused was of unsound mind and consequently incapable of making his defence or otherwise, however, that observation is to be based upon the facts of each particular case. In this particular case, as initially the learned Additional Sessions Judge vide order dated 25.10.2025 had made an observation that the petitioner appeared to be of unsound mind, therefore, after that observation, the proper course would have been for the learned Additional Sessions Judge to have tried the fact of his unsoundness of mind and incapability of making his defence as provided under section 465 Cr.P.C. prior to formulating an opinion regarding the mental health of the petitioner contrary to the earlier opinion as formulated by the learned Additional Sessions Judge vide order dated 25.10.2025, however, it was not done.

8. Now with regard to the subsequent observation of the learned Additional Sessions Judge in the order dated 06.12.2025 that the petitioner was capable of making his defence, the said order was passed under section 468 Cr.P.C.,

however, the same could not have been done for the simple reason that the provisions of section 468 Cr.P.C. become applicable when an accused *is again brought before* the Court after *having initially been declared incapable of making his defence*. In this particular case, as it was not even initially declared that the petitioner was of unsound mind and consequently incapable of making his defence by the learned Additional Sessions Judge , therefore, the order dated 06.12.2025 could not have been passed while exercising jurisdiction under section 468 Cr.P.C.

9. In view of the above discussion, as initially the learned Additional Sessions Judge vide order dated 25.10.2025 had observed that the petitioner *appeared to be of unsound mind*, therefore, it is directed that the learned Additional Sessions Judge shall now firstly try the fact of said unsoundness of mind and incapability of the petitioner to make his defence during the course of trial and record finding in this regard and thereafter proceed with the trial of the case. As much time has been lost due to not following the relevant procedure, therefore, the learned trial court is directed to conclude this matter and resolve the question with regard to whether the petitioner is of unsound mind and incapable of making his defence or otherwise ,while proceeding under section 465 Cr.P.C., within a period of two months, positively.

10. With the above directions and observations, the instant revision petition is ***disposed of***.

(SADIQ MAHMUD KHURRAM)
JUDGE

*Saleem Ahmad**

Approved for Reporting

Judge.